



Chase Kinslow <chase.kinslow@gmail.com>

Algorithmic Failure, Proctoring Glitch, and Demand for Account Reinstatement

9 messages

Chase Kinslow <chase.kinslow@gmail.com>

Tue, Jun 30, 2026 at 7:59 PM

To: sean@outlier.ai, xiaote@outlier.ai, david@outlier.ai, lauren.lennon@scale.com, jeff@outlier.ai, zac@outlier.ai, andrew@outlier.ai, chris@outlier.ai, james@outlier.ai

Gentlemen (and ladies),

Before proceeding, I should mention the following:

I have used government agency filings, ad hoc PR campaigns, litigation, and other measures against Farfetch, 7 For All Mankind, and PayPal, with resolutions all accruing to my benefit in excess of my request.

You should take me seriously. Or don't, and find out.

Please accept this letter as my formal ****Notice of Dispute**** pursuant to the dispute resolution and arbitration provisions set forth in the Scale AI / Outlier.ai Terms of Service and Independent Contractor Agreement. I am a licensed attorney in Arkansas and a licensed CPA in Arkansas and Louisiana.

I. Statement of Facts

On June 30, 2026, I initiated the registration process on the Outlier.ai platform. My identity was successfully verified. Immediately prior to beginning the Skill Screening assessment, the platform's proctoring software loaded a "camera setup" page. Before I was presented with the option to click "Start" or initiate the screening, the page suffered an automated system-side session timeout.

Due entirely to this technical glitch in the platform's proctoring software, the platform's automated algorithm flagged the session timeout as a "failed screening attempt" and deactivated my account. I have not performed any tasks, nor was I given the opportunity to take the screening.

II. Legal Claims & Industry Precedent

While your Independent Contractor Agreement contains at-will termination clauses, those clauses do not shield Scale AI from liability arising from automated, unilateral errors that prevent contract performance. Scale AI's failure to provide a functioning platform to execute the onboarding screening, coupled with an automated false-positive deactivation, constitutes:

1. Breach of the Implied Covenant of Good Faith and Fair Dealing:****** By automatically terminating my account due to a system-side proctoring software timeout before performance could begin, Scale AI has frustrated the purpose of the agreement.
2. Unilateral Mistake & Lack of Assent:****** The automated deactivation was a unilateral algorithmic error that does not reflect a true meeting of the minds.

Courts, tribunals, and regulators are increasingly rejecting "termination by algorithm" without human review. For example, in **ADCU v. Uber** (Amsterdam District Court), the court ruled that purely algorithmic terminations without a meaningful, human-led appeal process are legally

invalid. In **Pa Edrissa Manjang v. Uber Eats**, the company settled claims out of court following tribunal rulings regarding deactivations triggered by automated facial verification and proctoring failures.

Furthermore, Scale AI and Outlier.ai are currently facing significant legal and public scrutiny over these exact practices. Your platform is currently subject to class-action litigation regarding worker misclassification, non-payment for onboarding, and predatory account suspensions. These issues have been widely reported by media outlets like **Wired** and **Rest of World**, and are the subject of thousands of active complaints filed with the Better Business Bureau (BBB) alleging systemic, glitched deactivations designed to avoid human review.

III. Demand for Resolution and Notice of Intent to Arbitrate

I am seeking a simple, zero-cost resolution: ****the manual reinstatement of my Outlier.ai account and a reset of my screening access.****

If my account is not restored within thirty (30) days of this Notice, I intend to file a formal Demand for Arbitration with JAMS/AAA in accordance with the arbitration clause in the Terms of Service.

Pursuant to the JAMS/AAA consumer and commercial fee schedules, Scale AI will be required to prepay all non-refundable filing and case management fees (typically \$1,500 to \$3,000) to initiate the arbitration, regardless of the ultimate outcome of the dispute. As recent mass-arbitration filings against gig platforms (such as DoorDash and Amazon) have demonstrated, companies are contractually bound to pay these administrative fees even for individual, low-value disputes. It is financially irrational for Scale AI to incur thousands of dollars in JAMS/AAA filing fees over a simple, automated software glitch.

Please confirm receipt of this Notice and coordinate the restoration of my account with the platform's administrators.

Sincerely,

Charles "Chase" Kinslow IV, Esq., CPA

Charles W. Kinslow IV, J.D., C.P.A. <https://www.linkedin.com/in/experiencedaccountantlawyer>
Charles W. Kinslow IV, J.D., C.P.A. <https://www.linkedin.com/in/experiencedaccountantlawyer>

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **sean@outlier.ai** because the address couldn't be found, or is unable to receive mail.

[LEARN MORE](#)

The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; sean@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:55 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **andrew@outlier.ai** because the address couldn't be found, or is unable to receive mail.

[LEARN MORE](#)

The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; andrew@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:55 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **david@outlier.ai** because the address couldn't be found, or is unable to receive mail.

[LEARN MORE](#)

The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; david@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:55 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **chris@outlier.ai** because the address couldn't be found, or is unable to receive mail.

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The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; chris@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:55 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **xiaote@outlier.ai** because the address couldn't be found, or is unable to receive mail.

[LEARN MORE](#)

The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; xiaote@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:55 -0700 (PDT)



noname
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **zac@outlier.ai** because the address couldn't be found, or is unable to receive mail.

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The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; zac@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:57 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:01 PM



Address not found

Your message wasn't delivered to **jeff@outlier.ai** because the address couldn't be found, or is unable to receive mail.

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The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; jeff@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:01:00 -0700 (PDT)

 **noname**
7K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: chase.kinslow@gmail.com

Tue, Jun 30, 2026 at 7:00 PM



Address not found

Your message wasn't delivered to **james@outlier.ai** because the address couldn't be found, or is unable to receive mail.

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The response was:

The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Final-Recipient: rfc822; james@outlier.ai

Action: failed

Status: 5.1.3

Diagnostic-Code: smtp; The email account that you tried to reach does not exist. Please try double-checking the recipient's email address for typos or unnecessary spaces. For more information, go to <https://support.google.com/mail/?p=NoSuchUser>

Last-Attempt-Date: Tue, 30 Jun 2026 17:00:58 -0700 (PDT)

 **noname**
7K